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Date: 6/9/25

**COMBINED WATER AND WASTEWATER AGREEMENT BETWEEN SOUTH  
CHEYENNE WATER AND SEWER DISTRICT AND CITY OF CHEYENNE AND  
CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES**

THIS AGREEMENT made this \_\_\_\_ day of \_\_\_\_\_, 2025, between the SOUTH CHEYENNE WATER AND SEWER DISTRICT, a special district established under laws of the State of Wyoming (hereinafter referred to as the “District”), the CITY OF CHEYENNE, a Municipal corporation organized under the laws of the State of Wyoming (hereinafter referred to as the “City”), and the CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES, a Municipal entity established under the laws of the State of Wyoming (hereinafter referred to as the “BOPU”);

**WITNESSETH:**

WHEREAS the parties previously entered into the following contracts: 1970 Water Agreement between the District and the City dated June 30, 1970; an Agreement dated April 25, 1983 for the design and construction of the 201 Facilities Plan; a 1984 Wastewater Treatment Services Agreement dated March 26, 1984; an Addendum to the 1984 Wastewater Treatment Services Agreement dated March 19, 1990; and an Interjurisdictional Industrial Pretreatment Agreement between the District and the City dated April 7, 2023.

WHEREAS the parties desire to update their contractual obligations to meet the parties’ current needs. This three-party agreement between the District, the City and BOPU replaces and supersedes the previous 1970 Water Agreement and the 1984 Wastewater Treatment Services Agreement, including the March 19, 1990, Addendum.

WHEREAS the District boundary will be surveyed and reestablished by BOPU as provided by the attached Exhibit “A;”

WHEREAS BOPU is willing to continue to provide water to the District upon the terms and conditions hereinafter stated; and

WHEREAS BOPU is willing to continue to provide wastewater treatment services to the District upon the terms and conditions hereinafter stated.

NOW, THEREFORE, in consideration of the above premises and the mutual covenants hereinafter contained, it is agreed between the parties hereto as follows:

1.     LEGAL COMPLIANCE. The parties agree to fully comply with all Federal laws and State laws, and the Cheyenne, Wyoming City Code, relative to the use and distribution of water for human consumption and the collection and disposal of waste through sewer systems.

2.     COSTS. The cost of all construction within the District Boundary, including necessary infrastructure to the point of connection to BOPU water, recycled water, and wastewater systems including maintenance of such infrastructure, is the sole responsibility of the District. All operation and maintenance costs of the Sherard Water Treatment Plant and the Dry Creek and Crow Creek Wastewater Treatment Plants, as well as Raw Water Transmission, Potable Distribution mains, Recycled Water mains, and Wastewater Collection mains within the city limits will be the responsibility of BOPU.

3.     OWNERSHIP. Upon prior inspection and written acceptance by BOPU, the District agrees to relinquish and transfer the ownership, maintenance, and operation of the District's Crow Creek Interceptor Main, Manholes, and Siphon at the location where BOPU's Southern Transmission Main crosses the District's Interceptor Main approximately one-half (1/2) mile east of South College Drive east to the connection to BOPU's Dry Creek Interceptor Main (*See attached Exhibit "D"*). All existing easements will be transferred from the District to BOPU at BOPU's expense. BOPU will take ownership, maintenance, and operation of existing District sewer infrastructure off County Road 128A and provide service and billing to the existing eight (8) parcels currently served by the District as specified in the attached Exhibit "B." The District Boundary will be surveyed and reestablished per the attached Exhibit "A."

4.     DESIGN. Before the District provides any new water and sewer lines, systems or mains, including any rehabilitation or upsizing of existing infrastructure within the District, the design and construction shall be first submitted for review and written approval by BOPU to ensure compliance with the most current version of the "City of Cheyenne & Board of Public Utilities Construction Specifications and Standard Drawings" and the City of Cheyenne Board of Public Utilities "Infrastructure Policies & Design Criteria" (IPDC) documents. Prior to serving any new development the District shall also submit for review and approval written requests and plans for

all new proposed development within the District to BOPU for review of adequate water resources, transmission conveyance, and treatment capacity to serve such development. Transmission/conveyance capacity within the District boundary shall be determined by the District.

5. ANNEXATION. Not less than ten (10) business days prior to the time that BOPU water is scheduled to be provided to or connected to any new development within the District's boundary, the District shall furnish to the City and BOPU written evidence satisfactory to the City and BOPU showing that a sufficient number of the owners of property and users within the District have entered into agreements with the District that permit the entire area within the District to be annexed to the City after such bonded indebtedness is paid at such future date as the City should elect or request annexation. Such written evidence of future annexation must, in all respects, meet the requirements of Wyoming law and Cheyenne City Code then in effect pertaining to annexation. The written agreements of owners of property and users within the District shall comply with annexation when the City so elects or requests and shall also be binding upon the successors and assigns of said property owners and users within the District and shall be deemed to be covenants running with the land owned by them within the District. In the event the City elects or request annexation of the entire area within the District boundary, annexation fees will be waived. The District shall have the right to continue to own, operate, and maintain their current system including the ownership of water and sewer distribution and collection lines, and associated appurtenances. If the District chooses not to continue ownership, operation, and maintenance of water and sewer distribution and collection lines, appurtenances, and equipment, they shall immediately transfer to BOPU free and clear of all liens and encumbrances whatsoever. In the event the entire District boundary area is annexed and the District elects to transfer system ownership to BOPU, this Agreement shall terminate. If the District chooses to continue to own, operate, and maintain their current system this agreement will be continued and enforced. Nothing in this Agreement shall be construed to waive, invalidate, or otherwise affect any previously executed agreement by any owners of property or user within the District permitting the annexation of the District to the City. The BOPU shall have no obligation under this agreement to provide water to or connect to any new development within the District's boundary until the requirements imposed under this section have been met.

6. LOCATION OF METERED DELIVERIES. Subject to all the terms and conditions of this Agreement, BOPU agrees to deliver to the District treated water through three (3) master-meters locations per the attached Exhibit "C" at the following locations and pressure zones:

- West Fox Farm Road and Walterscheid Boulevard – City Pressure Zone;
- Persons and Avenue D – Sun Valley zone; and
- College and Avenue C – Sun Valley Pressure Zone\*

**"The current connections being used by the District at South House Avenue and Persons Road and Borough Road will be isolated and shut off by the BOPU."**

\* The District shall pay associated tap fees for the new College and Avenue C connection as well as design, installation, and connections costs from the existing meter pit stub west to the District's 10" water line in Avenue C at College Drive.

Minimum water pressures provided shall follow the current Water Design Criteria for Main Sizing & Flow Rates from BOPU's Infrastructure Policies & Design Criteria (IPDC). All pressure zones within BOPU's service area may be subject to change based on future growth and development within the city. BOPU will inform the District regarding any anticipated changes which BOPU determines may impact the District's system.

7. WATER RATE. The District shall pay BOPU for the amount of water delivered to the District at the most current approved District rate per one thousand (1,000) gallons of water delivered through said master meters described in Section 6 (LOCATION OF METERED DELIVERIES) above. This rate shall include a monthly service fee based on individual meter size; PROVIDED, HOWEVER, that this rate and fee may be hereafter raised or lowered by BOPU at the same time as water rates charged to in-City consumers are raised or lowered by Cheyenne City Code and BOPU Resolutions. The District agrees to pay for said water delivered to it through said master-meters above on a monthly basis, and agrees to remit to BOPU, within thirty (30) days following the end of each monthly billing cycle, the amount due for water furnished the District for said month.

8. SYSTEM DEVELOPMENT FEES FOR WATER. The District agrees to pay to BOPU any system development fees for all new water service connections within the District in

accordance with and in the amount specified by the most current Cheyenne City Code and BOPU Resolutions for water and sewer services and fees. The District may charge their own specified development fee to District patrons and users, to be determined by the sole discretion of the District. Beginning on or about July 1, 2025, the District will begin paying BOPU twenty five percent (25%) of the current system development fee total and increase the amount by twenty five percent (25%) each year until one hundred percent (100%) of the total current system development fee is met on or before July 1, 2028.

9. DISTRICT WATER RATE. The District shall not supply any water services to its patrons and users in said District at any rate less than that charged to comparable users within the City of Cheyenne as determined by Cheyenne City Code and BOPU Resolutions in effect hereunder. Neither the District, nor its patrons or users, will supply any water furnished hereunder to any outside party or any property outside the District's boundaries without the prior written authorization of the City and BOPU.

10. PENALTIES. The District shall monitor, enforce, and comply with BOPU's current version of the "Plan For Wise Water Use" (Plan) and any Cheyenne City Code sections governing water consumption and water conservation. Penalties for violations of the Plan and Cheyenne City Code are set forth in BOPU resolution covering Administration Fees, Service Charges, and Penalties which are revised and approved annually. The District shall fine and assess penalties and fees to their patrons and users for violations.

11. WATER RIGHTS. The use of water under the provisions of this Agreement shall not constitute or be deemed to be a relinquishment of any water or water rights to the District by the City or BOPU.

12. WASTEWATER FLOWS. Subject to all the terms and conditions of this Agreement, BOPU agrees to accept for treatment all wastewater flow from the District at all metered location(s) per the attached Exhibit "D" approved by BOPU and District. The cost of any future improvements and new meter locations will be the responsibility of BOPU.

13. WASTEWATER RATE. The District shall pay BOPU for such wastewater conveyance and treatment service at the current approved District rate per one thousand (1,000) gallons of wastewater delivered through said meters including the monthly service fee based on

individual sewer meter size; PROVIDED, HOWEVER, that this rate and fee may be hereafter raised or lowered by BOPU at the same time as wastewater rates charged to in-City consumers are raised or lowered by Cheyenne City Code and BOPU Resolutions. The District agrees to pay for said wastewater delivered to BOPU through said meters on a monthly basis, and agrees to remit to BOPU, within thirty (30) days following the end of each monthly billing cycle, the amount due for wastewater discharged from the District for said billing cycle.

14.     SYSTEM DEVELOPMENT FEES FOR SEWER. The District agrees to pay to BOPU the current sewer system development fees for all new sewer service connections within the District in accordance with the most current Cheyenne City Code and BOPU Resolution for water and sewer services and fees. The District may charge their own specified development fee to District patrons and users, to be determined by the sole discretion of the District. Beginning on July 1, 2025, the District will begin paying BOPU twenty five percent (25%) of the current sewer system development fee total and increase that amount by twenty five percent (25%) each year until one hundred percent (100%) of the total current sewer system development fee is met on or before July 1, 2028. The District agrees that BOPU may charge additional amounts for wastewater treatment pursuant to Chapter 13.20 of the Cheyenne City Code.

15.     DISTRICT SEWER RATE. The District shall not supply sewer service to its patrons or users in said District at any rate less than that charged to comparable users within the City as determined by the current Cheyenne City Code and BOPU Resolutions in effect hereunder. Neither the District, nor its patrons or users, will supply any sewer service furnished hereunder to any outside party or any property outside the District's boundaries without the written authorization of the City and BOPU.

16.     INDUSTRIAL PRETREATMENT PROGRAM. The District agrees to fully comply with the conditions specified by the City's Industrial Pretreatment Program within the District boundary per the current agreement dated April 7, 2023.

17.     CITY ASSESSMENT FEE. Beginning with the January 2025 BOPU monthly billing statement, the District will be responsible and liable for paying the City of Cheyenne Assessment Fee as provided by Section 13.04.141 of the Cheyenne City Code. The City agrees that no charges from the City of Cheyenne Assessment Fee are owed, and the City hereby waives

any and all claims related to the City Assessment Fee for any and all periods of time prior to the January 2025 monthly billing statement.

18. DISTRICT BOUNDARY. The District shall not enlarge its present boundaries without the consent of the City and BOPU, which consent, if provided, shall be memorialized by each entity pursuant to Resolution. However, the parties may agree to provide services outside the boundaries of the District or the City by mutual written agreement between the City, BOPU, and the District based on a unique patron, user or parcel of land requiring joint cooperation to develop. All such agreements shall be as an addendum to this Agreement.

19. TERMINATION. This agreement may be terminated without cause by any party upon ninety (90) days' written notice to the other parties. This agreement may be terminated by any party immediately for cause if any party fails to perform and or comply with the terms herein. This agreement may also terminate in accordance with Section 5 (ANNEXATION) herein.

20. SUCCESSORS and ASSIGNS. The terms and conditions contained herein shall extend to and be binding upon the successors and assigns of the parties hereto; provided, however, that the District shall not assign, delegate, or transfer this agreement, or any rights granted to the District hereunder, without the prior written consent of the City and BOPU.

21. GOVERNING LAW, JURISDICTION, and VENUE. The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and venue shall be the First Judicial District, Laramie County, Wyoming.

22. ENTIRE AGREEMENT OF THE PARTIES. This Agreement, including all Exhibits, contains the entire understanding of the parties there are no understandings between the parties, written or otherwise, not contained herein. Each party acknowledges that they have consulted with, or have had the opportunity to consult with, legal counsel regarding this Agreement.

23. SEVERABILITY. If any provision, section, subsection, sentence, clause, or phrase of this agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of the agreement, which shall continue in full force and effect.

24. INDEMNIFICATION. Each party to this Agreement hereby acknowledges and agrees that it shall be responsible for its own acts arising out of this Agreement. No party agrees to insure, defend or indemnify another party.

25. GOVERNMENTAL IMMUNITY. The City, BOPU, and the District and their officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et seq*, and all other applicable laws, except to the extent necessary solely for the enforcement of the terms and conditions of the Agreement as between the parties. Further, the City, BOPU, and the District fully retain all immunities and defenses provided by law regarding any action, whether in tort, contract, or any other theory of law, based on this Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

Executed the day and year first above written.

Attest:

BY

CITY OF CHEYENNE

\_\_\_\_\_  
Patrick Collins, Mayor

\_\_\_\_\_  
Kylie Soden, City Clerk

STATE OF WYOMING     )  
                                          ) SS.  
COUNTY OF LARAMIE    )

The foregoing instrument was acknowledged before me this \_\_\_\_ day of \_\_\_\_\_, 2025, by Patrick Collins, Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal.

\_\_\_\_\_  
Notary Public



CITY OF CHEYENNE BOARD OF  
PUBLIC UTILITIES

Attest:

BY

\_\_\_\_\_  
Allan Cunningham, President

\_\_\_\_\_  
Secretary

STATE OF WYOMING     )  
                                      ) SS.  
COUNTY OF LARAMIE    )

The foregoing instrument was acknowledged before me this \_\_\_\_ day of \_\_\_\_\_,  
2025, by \_\_\_\_\_,  
of \_\_\_\_\_.

Witness my hand and official seal.

\_\_\_\_\_  
Notary Public

SOUTH CHEYENNE WATER & SEWER DISTRICT

Attest:

BY

\_\_\_\_\_  
James Rish, President

\_\_\_\_\_  
Secretary

STATE OF WYOMING     )  
                                      ) SS.  
COUNTY OF LARAMIE    )

The foregoing instrument was acknowledged before me this \_\_\_\_ day of \_\_\_\_\_,  
2025, by \_\_\_\_\_,  
of \_\_\_\_\_.

Witness my hand and official seal.

\_\_\_\_\_  
Notary Public

Combined Water and Wastewater Agreement Between South Cheyenne Water and Sewer District  
and City of Cheyenne and City of Cheyenne Board of Public Utilities















**EXHIBIT D**

**EXISTING & PROPOSED NEW SCWSD SEWER METER AND INTERCEPTOR OWNERSHIP TRANSFER TO BOPU**

**BOPU SEWER MAIN**

- IN SERVICE - GRAVITY MAINLINE
- IN SERVICE - GRAVITY INTERCEPTOR
- IN SERVICE - GRAVITY TRUNKLINE
- IN SERVICE - FORCED OUTFALL
- PENDING / DEVELOPMENT - GRAVITY MAINLINE
- PENDING / DEVELOPMENT - GRAVITY INTERCEPTOR
- PENDING / DEVELOPMENT - TRUNKLINE

**SCWSD SEWER MAIN**

- OUT OF SERVICE - FORCED OUTFALL
- ABANDONED - GRAVITY MAINLINE
- ABANDONED - GRAVITY INTERCEPTOR
- ABANDONED - GRAVITY TRUNKLINE
- ABANDONED - FORCED OUTFALL
- SCWSD SEWER MAIN
- EXISTING SCWSD DISTRICT BOUNDARY

**Legend:**

- PENDING / DEVELOPMENT - FORCED OUTFALL
- PENDING / CAPITAL IMPROVEMENT PROJECT - GRAVITY
- PENDING / CAPITAL IMPROVEMENT PROJECT - GRAVITY INTERCEPTOR
- PENDING / CAPITAL IMPROVEMENT PROJECT - GRAVITY TRUNKLINE
- PENDING / CAPITAL IMPROVEMENT PROJECT - FORCED OUTFALL
- OUT OF SERVICE - GRAVITY MAINLINE
- OUT OF SERVICE - GRAVITY INTERCEPTOR
- OUT OF SERVICE - TRUNKLINE

**Legend:**

- OUT OF SERVICE - FORCED OUTFALL
- ABANDONED - GRAVITY MAINLINE
- ABANDONED - GRAVITY INTERCEPTOR
- ABANDONED - GRAVITY TRUNKLINE
- ABANDONED - FORCED OUTFALL
- SCWSD SEWER MAIN
- EXISTING SCWSD DISTRICT BOUNDARY

**Scale:** 0 500 1,000 US Feet

**North Arrow:** N

**Current Date/Time:** 2/13/2025 1:57 PM

**ADMIN:** Brad Brooks, JPL